

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

DECLARATION OF GENE M. BURD

I, GENE M. BURD, under penalty of perjury and pursuant to 28 U.S.C. § 1746, declare that the factual statements contained herein are made of my personal knowledge and are true and correct.

1. I am over the age of 18 and am otherwise *sui juris*.
2. I am a partner with the law firm Pierson Ferdinand LLP, counsel for TPG Pressure, Inc. ("TPG") in this action.
3. I prepared spreadsheet entitled Appendix Vol VI CApp011019 - Damages Chart Revised for Reply to assist the Chief Administrative Judge with organizing and reviewing the damages computations as provide by the Federal Rules of Evidence 611(a).
4. The spreadsheet was prepared based on the Appendix Vol VII CApp011020 - Shipment Chart.
5. The spreadsheet includes computation of Complainant's Demurrage Claims, Storage Claims, and Chassis Claims with each computation under separate tab with corresponding title.
6. The entries in the spreadsheet are copied from the corresponding entries from Appendix Vol VII CApp011020 - Shipment Chart. Demurrage claims for shipments to Nova Scotia, Canada with further transport to Chicago, IL by rail are excluded from the computation. Storage Claims and Chassis Claims for the project entitled Ship Canal are excluded from the computation.

7. The tab entitled Summary and Demurrage Timeline shows a summary of demurrage charges by month and their graphical representation. The chart was prepared using the Excel pivot function.

8. Upon further review of the Appendix Vol VII CApp011020 - Shipment Chart it came to our attention that the date for the invoice No. 7204719 00 was inadvertently entered as 3/21/2021 instead of 3/21/2022. This error did not affect the computation of damages.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: April 9, 2024

Washington D.C.

Respectfully submitted,

/s/ Gene M. Burd
Gene Burd